

TENTATIVE RULING

Case: **Horizon Contract Glazing, Inc. v. Klein**
Case No. CV2026-0960

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

Motion to strike:

Defendant Michelle Klein’s request for judicial notice is **GRANTED**. (Evid. Code, § 452, subd. (d).)

Defendant’s motion to strike portions of plaintiff’s first amended complaint (“FAC”) is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436.) Where a complaint fails to allege facts sufficient to support a punitive damages claim, the offending allegations and prayer are properly stricken. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63-64.) Oppression, fraud, or malice, each involve “intentional,” “willful,” or “conscious” wrongdoing of a “despicable” or “injur[ious]” nature. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) The FAC does not allege that plaintiff Horizon Contract Glazing, Inc. communicated to defendant that it could not operate without the requested information or defendant was not authorized to use plaintiff’s credit cards. (Opposition, pp. 3-6; See FAC generally.) Additionally, plaintiff does not allege facts showing that defendant misrepresented her “hours worked, compensation owed, or identity...” (Opposition, p. 4; See FAC generally.) Therefore, plaintiff’s FAC fails to allege facts sufficient to support a punitive damages claim. (See *Turman, supra*, 191 Cal.App.4th at pp. 63-64.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Order to show cause:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **McKeon v. General Production Service of California, Inc.**
Case No. CV2026-0203

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

As an initial matter, the Court notes that defendant General Production Service, Inc. (“defendant”) filed a supplemental declaration of Eric Estrada on August 21, 2026. The Court, in its discretion, will consider the supplemental declaration. (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].) Because the Court is considering the supplemental declaration, the Court will allow plaintiff Douglas Patrick McKeon (“plaintiff”) to file a supplemental opposition and will allow defendant to file a supplemental reply.

On the Court’s own motion, defendant’s motion to compel arbitration and stay case is **CONTINUED to October 15, 2026**, at 9:00 a.m. in Department Thirteen.

By **October 2, 2026**, plaintiff may file a supplemental opposition.

By **October 8, 2026**, defendant may file a supplemental reply.

No other documents will be considered.